

#	Case Name	Tentative
49	Ware Malcomb vs. Rogerson Capital 24-01440256	Motion to Be Relieved as Counsel of Record NO TENTATIVE RULING – Parties to appear on Zoom or in-person.
51	Robinson vs. Laguna Beach House 23-01317797	Motion for Leave to File Amended Complaint Plaintiff Paul Robinson’s motion for leave to file a First Amended Complaint (“FAC”) is GRANTED. Code of Civil Procedure section 473, subdivision (a)(1), provides that “the court may, in furtherance of justice, and on any terms as may be proper, allow a party to amend any pleading or proceeding...” (Code Civ. Proc., § 473, subd. (a)(1).) Courts are bound to apply a policy of great liberality in permitting amendments to the pleadings “at any stage of the proceedings, up to and including trial” absent prejudice to the adverse party. (<i>Atkinson v. Elk Corp.</i> (2003) 109 Cal.App.4th 739, 761.) The policy favoring amendment is so strong that it is a rare case in which denial of leave to amend can be justified: “If the motion to amend is timely made and the granting of the motion will not prejudice the opposing party, it is error to refuse permission to amend; and, where the refusal also results in a party being deprived of the right to assert a meritorious cause of action or a meritorious defense, it is not only error but an abuse of discretion.” (<i>Morgan v. Superior Court</i> (1959) 172 Cal.App.2d 527.) “Generally, leave to amend should be liberally granted. However, unwarranted delay justifies denial of leave to amend. [Citations.] And the liberal policy favoring leave to amend ‘applies “ ‘only “[w]here no prejudice is shown to the adverse party.” ’ ’ ’ [Citation.] Prejudice exists where the proposed amendment would require delaying the trial, resulting in added costs of preparation and increased discovery burdens. [Citation.]” (<i>Miles v. City of Los Angeles</i> (2020) 56 Cal.App.5th 728, 739.) Defendant Laguna Beach House (“Defendant Hotel”) contends Plaintiff’s delay in seeking leave to file the proposed FAC is unwarranted. Here, Plaintiff learned of the Doe Defendants Plaintiff seeks to add in June 2025 and October 2025. (See Alexander Decl. ¶¶ 2 and 16, Exhs. B and I.) During the ensuing months, Plaintiff and Defendant Hotel engaged in settlement discussions. (<i>Id.</i> at ¶¶ 6-10.) On September 25, 2025, Plaintiff requested Defendant Hotel to stipulate to Plaintiff adding the Doe Defendants to the Complaint; Defendant Hotel failed to respond. (<i>Id.</i> at ¶ 11.) Plaintiff applied ex parte to leave to amend the Complaint on February 19, 2026 and filed the instant motion on March 11, 2026. (ROA 53.) Although Plaintiff could have requested leave to amend more promptly, Plaintiff’s delay is not unwarranted, particularly when Defendant Hotel’s lack of communication is considered. Trial is currently set for September 14, 2026. Discovery is not yet closed and appears to be in its early stages. (See Alexander Decl. ¶ 21.) The motion for leave to file an amended complaint is granted. Plaintiff is ordered to file and serve the First Amended Complaint attached as Exhibit A to the Declaration of Barret T. Alexander by June 5, 2026. Plaintiff to give notice.